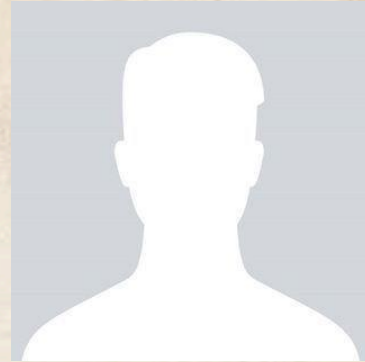


SUBJECT PROFILE (CLASSIFIED- MURDER CASE)

CASE FILE : 52Z627/23
SUBJECT : MANISH KUMAR
AGE : 34
VILLAGE : Palampur
OCCUPATION : Medical Shop owner
MARITAL STATUS : MARRIED
CHILD : One daughter, 6
FAMILY : Wife, mother, older brother
REPUTATION : Villagers describe him as quiet
and family-oriented.



(Photograph of the subject is missing)

DATE OF MURDER : 18th August 2023
SITE WHERE BODY WAS FOUND: Abandoned rubber shed near the town.

PERSONAL NOTES:

Usually left the village twice a month by claiming to visit a friend in a nearby town. These visits became frequent three months before his death. When asked, the wife of the subject responded that she was unaware about who this friend was.

RECOVERED ITEM:

A photograph was found inside the wallet of the victim. The photograph showed the victim holding hands with another person - presumed to be a man. On the back of the photograph it was written:

"Somewhere we can be ourselves"

WITNESS STATEMENTS:

WITNESS 01 - Neighbour:

Everything was perfect about that house. Manish has always been a good man who cared a lot for his family. But, a few weeks before his death, I heard his brother shouting at him and kept on yelling "DO YOU KNOW WHAT PEOPLE ARE GOING TO SAY ABOUT US ? DO YOU HAVE ANY SHAME?" This was very strange as I've known and regarded Manish as a respectable man. A few days after that, I saw him board a bus going to town.

WITNESS 02 - Tea shop owner (nearby town):

I've known Manish and his family for years, he was our regular customer. He always visited our shop with another man. He said that the man was his close friend. About a few weeks before Manish's death, I saw this man having a heated argument with Manish's brother beside our tea shop. I heard Manish's brother threatening him by saying "If I ever see you with him again, I'll make sure that you'll never see or hear about him again !! DO YOU UNDERSTAND??" After that, I've never seen them again.

A note to the detective reading this - There are so many unanswered mysteries revolving around this murder case. Who was Manish's friend? Why did Manish make secret visits to town? Why was his brother furious? What ultimately led to Manish's murder?

You have the evidence. What do you think happened?

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Dear reader,

I know you have probably arrived at a conclusion by now and that you know exactly what this was intended at. Here, this case was clearly an example of 'honour killing', because two people chose to love each other despite knowing that the society around them would never accept them for who they are. Society hunted them down in all aspects. How many lives do we have to see perish before our eyes until society sees love for what it really is - LOVE !!

Keeping morality aside, which would itself be ironic, the real question is what protection does the law give that the society doesn't. Though consensual same-sex relationships between two people were decriminalised, marriage between them is still not legally recognized in India.

The Supreme Court has recognised that LGBTQ+ persons are subject to equal protection of law and directed the State to protect their rights by preventing discrimination. Now a real contradiction arises and it is impossible to ignore.

The relationship of a same-sex couple is real in every sense that matters to them. However, the absence of recognition of marriage can deprive them of the same legal status and protections provided to marriage for heterosexual couples. It includes adoption, succession and maintenance. And perhaps this is where the discussion on gender-neutral laws becomes more complicated. Gender neutrality doesn't merely refer to replacing the words 'man' and 'woman' with 'person'. It should also mean that the protection of the law must be available to every person, regardless of whom they love or how they identify.

The question remains... Who is actually responsible for the fear that made the victim hide his life behind the curtains of judgment?

- Amitha B, IP Reporter, AIPPM Committee